

27 H. 8. c. 10.—The mischiefs of the system increasing more and more (the statute of Richard occasioning still greater evils than it remedied, from the facility it gave to the *cestui que use* and his feoffee, who had now each the power of passing the legal estate, of defrauding by collusion the *bonâ fide* purchaser), the legislature again interposed its authority by 27 Hen. 8. c. 10, and thereby annihilated uses as regarded their fiduciary character, by enacting, that “Where any person stood *seised* of any hereditaments to the use, confidence, or trust of any other person, or of any body politic, such person or body politic as had any such use, confidence, or trust, should be deemed in lawful *seisin* of the hereditaments in such like estates as they had in use, trust, or confidence” (1).

Special trusts and trusts of chattels excepted from the statute.—*Uses* by the operation of this statute became merged in the legal estate; but *special trusts* and *trusts of chattels* were not within the purview of the Act: the former, because the use, as well as the legal interest, was in the trustee; the latter, because a termor is said to be *possessed*, and not to be *seised* of the property.

[*7] *** Introduction of the modern trust.**—In the room of uses which were thus destroyed as they arose,

(1) **Objections to the doctrine that no use could have been declared upon an estate in tail or for life.**—As this statute *does* operate on the use of a life estate, but does *not* apply to a *seisin* in tail, the doctrine of Mr. Sanders, that prior to 27 Hen. 8. there was no use of a *seisin* either in tail or for life, seems open to the following objections:—1. That the statute in executing the use of a life estate operates on an interest which at the time of the enactment had no existence; and, 2ndly, that in *not* executing a use declared on a *seisin* in tail, it operates differently on two estates falling, according to his view, within the same principle. To meet the former objection, Mr. Sanders holds the statute of Hen. 8. to be prospective, and distinguishes it from the statute of Richard, which he considers not to be prospective, by observing that the latter employs the word “use” only, while the former has the additional term of “trust”; but to this it may be answered, that, although the *statute* of Richard does not contain the word *trust*, the *preamble* does, and that the distinction contended for between *use* and *trust* had no existence until a comparatively late period. See *Altham v. Anglessey*, *Gilb. Eq. Rep.* 17. To obviate the latter objection, it is maintained by Mr. Sanders that tenant in tail *is* within the statute of Hen. 8.; an opinion which, it is submitted, is directly opposed to the general stream of authority: *Co. Lit.* 19, b.; *Shep. Touch.* 509; *Gilb. on Uses*, 11, and Lord St. Leonards’ note, *ibid.*